

22GDCV01037 22GDCV01037

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-01

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Case Number: 22GDCV01037 Hearing Date: July 1, 2026 Dept: T

Rogers v. Bronsozian

The Court requests that the parties be prepared to address the following issues at oral argument with citations to the factual record:

1. Is it

undisputed that the February 15, 2022, Loan Estimate (Defendant's Exhibit 18) was for a Qualified Mortgage (QM) loan?

a. If it was

a QM loan, is it also undisputed that Plaintiff did not qualify for this loan because his income was too low?

b. If it was

not a QM loan, why does Defendant contend that Plaintiff did not qualify for this loan. (See Motion, 8:21 – 8:22)

c. Regardless

of the character of the loan, when

was Plaintiff informed that he did not qualify for this loan?

d. Regardless of the character of the loan, is it undisputed that Plaintiff did not want this loan because it did not have an interest only term?

2. Was the February 28, 2022, Loan Estimate (Defendant's Exhibit 19) for a QM loan or a Business Bank Statement (BBS) loan?

a. Why didn't Plaintiff qualify for the loan?

b. When was Plaintiff informed that he did not qualify for this loan?

3. Is it

undisputed that Plaintiff, based on his financial condition at the time, would have never qualified for a QM loan for this transaction?

a. When was Plaintiff informed that would not

qualify for a QM loan?

4. Is it

undisputed that Plaintiff, based on his financial condition at the time, would have never qualified for a BBS loan through NFM for this transaction?

a. When was Plaintiff informed that would not qualify for a NFM BBS loan?

5. Was the April 1, 2022, Loan Estimate (Defendant's Exhibit 20) the first BBS loan offered by Defendant?

6. Is it undisputed that Plaintiff never asked Defendant to quote a 40-year loan with 10-years interest only?

7. Is it

undisputed that Defendant never offered Plaintiff a 40-year, 10-years interest only, loan?